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Elon Musk's X is suing California. Here's why.

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Elon Musk's X, the social media platform formerly known as Twitter, filed a lawsuit Sept. 8 against the state of California over content moderation law AB 587.

Under AB 587, which California Governor Gavin Newsom signed into law in September of 2022, social media sites are required to make transparent their terms of service and content moderation policies. They must also file a semiannual report to California's Attorney General detailing how their current terms of service define and moderate hate speech, extremism, misinformation, harassment, and foreign political interference.

X Corp.'s suit alleges that AB 587's content moderation policies violate free speech laws. As written in the complaint, AB 587 "compels companies to engage in speech against their will, impermissibly interferes with the constitutionally-protected editorial judgments of companies such as X Corp."

The suit also claims that it is "difficult to reliably define" what counts as hate speech or misinformation, citing that these definitions are "often fraught with political bias."

Democratic Assemblyman Jesse Gabriel, author of AB 587, said in a statement that AB 587 is "a pure transparency measure that simply requires companies to be upfront about if and how they are moderating content. It in no way requires any specific content moderation policies – which is why it passed with strong, bipartisan support."

Gabriel added, "If Twitter has nothing to hide, then they should have no objection to this bill."

X Corp.'s lawsuit is the latest development in Musk and X's complicated relationship with freedom of speech and hate speech. After taking over Twitter in 2022, he cut its global content moderation team and disbanded the Trust and Safety council, meant to address problems with the platform including, but not limited to, hate speech, child exploitation, and harassment.

Musk reinstated accounts of controversial figures like Andrew Tate and supported right-wing outlet The Daily Wire. He also sued a nonprofit dedicated to tracking hate speech online and suspended journalists who covered Musk, including Mashable's Matt Binder.

Most recently, Musk has been highly critical of the Anti-Defamation League, a Jewish civil rights organization combating extremism and anti-Semitism. He liked anti-ADL posts supporting the #BanTheADL hashtag and even floated a lawsuit.

Notably, the ADL supports AB 587. In AP News' 2022 reporting on the bill being signed into law, they said that the ADL and other groups sought out the bill in the first place, viewing it as a necessity for countering hate speech online.

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